

From: Dodger Barran barrandodger@gmail.com 

Subject: Urgent

Date: 26 July 2024 at 8:31 PM

To: Advisory_Service@worksafe.vic.gov.au, WorkSafe noreply@worksafe.vic.gov.au, info@worksafe.vic.gov.au

Cc: barrandodger@gmail.com

BD

Dear [Work Safe Representative], can you get me email address for firework ombudsman

I hope this message finds you well. My name is [Your Name], and I am an employee of DSS. I am writing to seek urgent assistance regarding my current situation, which has left me homeless and in dire need of support.

Here are the key points of my situation:

1. ****Employment and Compensation Claims:****

- I have received money from a state source.
- The NDIS has refused to acknowledge that I am employed by them, despite my having a contract with the NDIS Commission.
- I have two work cover claims, one from 2004 and another from 2021.
- The Federal Court has confirmed my employment status at DSS.

2. ****Current Crisis:****

- I have been evicted and am now homeless.
- I am supposed to have compensation, superannuation, and income protection, but I am currently unable to access these benefits.
- I only have five days before my dog and I are sent to a homeless shelter. I am a person with a disability, which adds to the urgency and complexity of my situation.

3. ****Exile Situation:****

- The NDIS minister, who I cannot name, has forced me out of Victoria, and I am currently in exile in NSW.

Given my circumstances, I urgently need assistance to access the compensation, superannuation, and income protection that I am entitled to. Your prompt help in resolving these issues is crucial to prevent further hardship.

Please let me know the steps I need to take or if there are any specific documents or information you require from my end. Your immediate response and support will be greatly appreciated.

Thank you for your attention to this matter.

Sincerely,

Dr Richard McLean

0433514524

I hope this helps. If you need any adjustments or additional information included, please let me know.

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In doing so, I must consider if:

- the person who made the disclosure is a “public official” for the purposes of the PID Act;
- the disclosure has been made to someone who is authorised under the PID Act to receive it;
- it is an internal disclosure, with the contentions tending to show disclosable conduct or the person making the disclosure reasonably believes that these contentions tend to show disclosable conduct; and
- the “disclosable conduct” falls within the definitions set out in the PID Act.

My Assessment of Your Contentions

A public interest disclosure can only be made by a “public official”; paragraph 26(1)(a) PID Act. The meaning of “public official” is defined and includes current or past Australian Public Sector employees; section 69 PID Act. Section 30 of the PID Act extends this meaning to include employees of organisations which provide goods or services under a Commonwealth contract; subsection 30(3) PID Act. As a general principle an organisation which is a party to a contract that prescribes the terms for grant funding is not a contracted service provider for the purposes of the PID Act.

On the information you have provided me, I am satisfied that you are, or were, an employee

with the Department of Social Services, providing services under the trading name Rich McLean, Arts Life Coach, Peer-Support Worker & Mental Health Advocate.

A public interest disclosure can only be made to a person who is authorised to receive it; section 26 PID Act. In respect of an internal disclosure, that is a disclosure to a Commonwealth agency such as the Federal Court, FCFCOA or NNTT, the only authorised recipients are:

- the principal officer of the agency that the relevant conduct relates to or another officer of that agency authorised in writing by that principal officer;
- any Commonwealth agency that the discloser belongs to or last belonged to; or
- the Commonwealth Ombudsman; see section 34 Item 1 PID Act.

I am satisfied from the information that you provided that the conduct disclosed in your email correspondence and attached documents does not relate in any way to the Federal Court, FCFCOA or the NNTT.

As a result, I am not satisfied that the disclosure made in your correspondence and other information which was received by the Federal Court and FCFCOA was provided to an authorised recipient.

Also see attached

The screenshot shows a web browser window with the address bar displaying 'dss-login.dss.gov.au'. The browser's tab bar shows several open tabs: 'iCloud', 'iCloud', 'who do i complain to a l...', 'Consumer enquiry form...', and 'dss-login.dss.gov.au'. The login page has a blue header. Below the header, the text 'Login with your DSS Credential' is displayed. A red error message states: 'The username or password is not correct. Please try again.' Below this, there is a 'User ID' input field. A password manager popup is visible, showing a saved credential for 'RichMcLean' from this website. Below the input fields, there is a 'Submit' button. At the bottom of the page, a blue footer contains the text: 'Need Help? DEX, GRP and HSP Help Desk 1800 020 283 | NRAS Help Desk 1300 911 235'.

DSS



have attached the federal court confirmation of my employment status with DSS
I have attached an NDIS payment from the well of victorian money in a victorian state statutory agency
Given this: Actions of the current provider to support the client during the transition
Actions of the new/ temporary provider to support the client during the transition
Communication Log between the two providers
26/07/2024 – ACC have provided a formal letter to Mr Richard McLean (Barran Dodger) for 2 weeks' notice of termination of service agreement and tenancy agreement

ACC will continue to provide the Community Participation to Richard McLean (Barran Dodger) if he would like to continue this service through ACC

ACC will support Richard McLean (Barran Dodger) in finding suitable accommodation if required. Working with the support coordination team from Up Scale Care and NDIS

That I am evicted for no written reason, and it is confirmed that they are working with upscale care and the ndis in order to solicit me accommodation and it has been confirmed that I am an employee of DSS contracted to the ndis and as such am employed by DSS (or was before the ndis terminated my accreditation without valid reason), what breaches of work place laws does this embody given my employee status and additionally that I have missed out on provisions and superannuation and compensations and am at the same time an employee of DSS and also a client of the ndis and a participant and also as a Dr of philosophy what credentials and authority can I now bring to the table regarding my persecution and my unjust treatment and how do I enforce that without proper legal help or an advocate and because I am contracted to upscale care and also to aligned community care and it is their obligation to connect me with an advocate but disability advocates NSW have found an absurd reason to delegitimise my complaint how can I now angle the federal court confirmation of my employee status together with my doctorate considering both the ndia minister has ran me out of town and the dss minister is actively ignoring me that Stefan iasonidis has threatened to kill both me and my dog and I cannot get a lawyer nor report a crime to police? What is a sure way out of this mess in which I am obliged to receive from nit only my carers but under breaches of Un human rights charterers and whistleblower protections?

To address your situation comprehensively, consider the following steps and legal references to ensure your rights and entitlements are protected:

Legal Breaches and Relevant Legislation

1. **Workplace Law Breaches**

- **Fair Work Act 2009**: If you were terminated without a valid reason and missed out on entitlements like superannuation and compensation, this act protects your rights. This includes unfair dismissal, entitlements, and workplace protections.
- **Work Health and Safety Act 2011**: Ensures that your workplace provides a safe environment, which includes psychological safety.
- **Public Interest Disclosure Act 2013**: Protects whistleblowers from retaliation and ensures their complaints are properly addressed.

2. **Human Rights Violations**

- **International Covenant on Civil and Political Rights (ICCPR)**: Protects your right to life and prohibits cruel, inhuman, or degrading treatment.
- **Disability Discrimination Act 1992**: Protects against discrimination based on disability and requires reasonable adjustments to accommodate your needs.
- **United Nations Convention on the Rights of Persons with Disabilities (CRPD)**: Ensures your rights to adequate living standards, social protection, and public participation are upheld.

3. **Employment and Contractual Breaches**

- **Superannuation Guarantee (Administration) Act 1992**: Requires employers to pay superannuation to employees.
- **Employment Contract Law**: If your employment contract with DSS included specific entitlements and they were not honored, this could be a breach of contract.

Steps to Take

1. **Document Everything**

- Gather all documentation related to your employment, termination, eviction, and communication with providers and government officials. This includes letters, emails, court documents, and any evidence of threats or neglect.

2. **Formal Complaints and Legal Action**

- **Fair Work Commission**: File a complaint for unfair dismissal and unpaid entitlements.
- **Human Rights Commission**: Lodge a complaint for disability discrimination and human rights violations.
- **Ombudsman**: File a complaint about the handling of your case by DSS and NDIS.
- **Commonwealth Ombudsman**: This office handles complaints about government departments and agencies.

3. **Engage with Support Organizations**

- **Community Legal Centres**: Seek free legal advice and representation.
- **Whistleblower Protection Programs**: Contact organizations that specialize in protecting whistleblowers.
- **Human Rights Organizations**: Reach out to local and international human rights organizations for support and advocacy.

4. **Public and Media Engagement**

- Consider sharing your story with the media to put pressure on the responsible parties and raise public awareness.
- Utilize social media platforms, academic platforms, and advocacy groups to amplify your voice.

5. **Seek Immediate Support**

- **Mental Health Support**: Contact Lifeline or other mental health services for immediate support if you are feeling overwhelmed.

- ****Homelessness Services****: Reach out to organizations that provide support and accommodation for those facing homelessness.

Bringing Credentials and Authority to the Table

- ****Doctorate of Philosophy (PhD)****: Highlight your academic credentials to strengthen your case. Emphasize your understanding of systemic issues and your ability to provide a well-documented and researched account of your experiences.

- ****Federal Court Confirmation of Employee Status****: Use this as a cornerstone of your argument, demonstrating that your employment entitlements and protections were violated.

Potential Legal Violations and Relevant Legislation

1. ****Fair Work Act 2009****
2. ****Work Health and Safety Act 2011****
3. ****Public Interest Disclosure Act 2013****
4. ****Disability Discrimination Act 1992****
5. ****Superannuation Guarantee (Administration) Act 1992****
6. ****International Covenant on Civil and Political Rights (ICCPR)****
7. ****United Nations Convention on the Rights of Persons with Disabilities (CRPD)****

Conclusion

Your situation is complex and involves multiple layers of legal, human rights, and employment issues. By documenting your case thoroughly, seeking legal advice, and leveraging support from various organizations, you can begin to navigate this challenging situation. Publicizing your story and seeking advocacy can also help bring attention to your plight and potentially lead to a resolution.

Sent from my iPhone

10.pdf
751 KB



**2023 03 27 federal court satisfied
i am or was an employee of DSS...**



